

IN THE COUNTY COURT OF MANATEE COUNTY, FLORIDA

COLONIAL MOBILE MANOR LIMITED,

Plaintiff,

vs.

Case No. 2015-CC-1309

KAREN JEAN MORRIS,

Defendant,

FILED FOR RECORD
2015 NOV 20 AM 10:41
CLERK OF THE CIRCUIT COURT
MANATEE CO. FLORIDA

**ORDER DENYING PLAINTIFF'S MOTION FOR DEFAULT
FINAL JUDGMENT FOR POSSESSION AND DETERMINING RENT**

THIS CAUSE having come before the Court upon Plaintiff's motion for default final judgment against Garnishee, and the Court having review the motion and court file and being otherwise fully advised, it is hereby **ORDERED AND ADJUDGED** as follows:

1. The parties entered a stipulation that was ratified by the Court. In lieu of deposits of rent into the Court registry, the stipulation contemplated rent payments to be made directly to counsel for Plaintiff, to be held in trust and/or disbursed to Plaintiff. The stipulation did not include language regarding the remedy or mechanism of enforcement in the event of default. Moreover, the Defendant offered sworn testimony that payments were delivered late due to circumstances beyond her control.

2. The Court did not find the Defendant's explanation for the late delivery of payments to be credible, and the argument that she is entitled to renege on her own stipulation is disconcerting at best. Nonetheless, the Court does not find that the circumstances permit the entry of a default as a matter of law.

3. In light of the foregoing, the motion for default is DENIED. The Court further orders that no later than 4:00 p.m. on December 1, 2015, Defendants shall pay the sum of \$439.00 into the registry of Court. The Defendant shall pay an additional \$439.00 into the registry no later than 4:00 p.m. on the first business day of each calendar month thereafter. This written order reflects the Court's oral pronouncement in open court at the conclusion of the hearing.

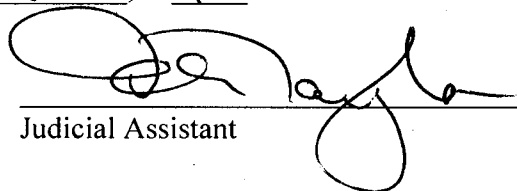
4. Should Defendant fail to pay into the registry any of the sums set forth above as ordered, the Plaintiff shall be entitled to an immediate default upon application to the Court

DONE AND ORDERED in Bradenton, Manatee County, Florida this 19th day of Nov-, 20 15.



CHARLES SNIFFEN
County Judge

I HEREBY CERTIFY that a copy of the foregoing has been furnished by mail to the above-named parties this 19th day of Nov, 20 15.



Judicial Assistant